

Sub-processor Schedule — Identity Verification Provider

This schedule governs processing carried out by the operator's designated **Identity Verification Provider** (the party fulfilling the IDV/KYC and biometric re-derivation role). It is incorporated by reference into the Shyware Data Processing Agreement (`DATA_PROCESSING_AGREEMENT.tex`) and is published at <https://shyware.fyi/legal/privacy/dpia/dpa/schedule-verification>.

The operator must name their designated verification provider in their deployment configuration and obtain a signed DPA with that provider before processing personal data.

Configuration trigger: This schedule applies when the operator's `shyconfig` manifest sets `identity.provider` to any biometric or KYC-based provider (`"didit"` or equivalent). Wallet and manual-demo identity modes are outside this schedule's scope.

Role Definition

Field	Value
Sub-processor role	Identity Verification Provider (IDV / KYC / biometric re-derivation)
Named provider (operator completes)	<code>REQUIRED_OPERATOR_INPUT</code>
Contact for data protection	<code>REQUIRED_OPERATOR_INPUT</code>
Location	<code>REQUIRED_OPERATOR_INPUT</code>
Transfer mechanism (if outside EEA)	<code>REQUIRED_OPERATOR_INPUT</code>

Data Processed

The verification provider processes the following categories of personal data on behalf of the operator:

- Biometric enrollment data (facial scan, liveness check, or equivalent) — used to establish a stable person identity
- Government-issued identity document data — used for KYC eligibility determination
- Participant public key (`voter_pub_key` or equivalent) — attested by the provider for oracle-forgery prevention; the provider does **not** receive the per-scoping private key (`sk_v`)
- Attestation logs — signing records produced by the provider during identity attestation workflows

Special Category Obligations (Art. 9)

Biometric processing falls within the special category definition of Art. 9(1) GDPR. Before processing:

- The operator must identify and document an Art. 9 legal basis (explicit consent, vital interests, or applicable member-state derogation) in the deployment DPIA
- Explicit written consent must be obtained from each data subject before biometric enrollment
- Some jurisdictions prohibit biometric processing entirely; the operator must confirm lawfulness per deployment jurisdiction before production
- A data protection impact assessment covering biometric processing must be completed and filed

Structural Constraints

The verification provider's data access is structurally limited by the Shyware protocol:

- **Oracle-forgery prevention:** The provider attests the participant's public key but never holds the per-scoping private key. The provider therefore cannot forge a submission on behalf of a participant. This property is structural, not policy.
- **Participation inference:** In the baseline identity tier, the provider can infer participation from its signing records. In the ZK nullifier tier, the provider signs a hash commitment and cannot derive the on-chain nullifier. The operator must configure the appropriate tier for the deployment's threat model.
- **No canonical state access:** The provider does not write to or read from the canonical two-list ledger. It holds no submission payloads and no off-chain linkage data.
- **No cross-operator correlation:** The provider must not correlate attestation logs across deployment operators without the operator's documented instruction.
- **Independent auditable trail:** Attestation logs constitute one leg of the three-authority collusion detection surface. The provider must maintain logs sufficient for independent audit of attestation fraud.

Operator Obligations

- Execute a signed DPA with the verification provider before processing any personal data
- Document the provider's name, location, and transfer mechanism in the deployment Records of Processing (`generate-rop.mjs`)
- Configure `retention.idv_records_days` in `shyconfig.json` consistent with the provider's DPA terms and applicable law
- Ensure the provider's DPA imposes obligations equivalent to those in the Shyware DPA on the provider
- Notify Shyware of any change of verification provider at least 30 days in advance

Audit and Retention

Attestation records must be retained for a period sufficient to support: data subject access requests (Art. 15), erasure requests (Art. 17 — note that biometric enrollment data erasure terminates recovery capability), audit proceedings, and legal process. The operator must agree a specific retention period with the verification provider and document it in the Records of Processing.

This schedule is incorporated by reference into the Shyware Data Processing Agreement and is published at <https://shyware.fyi/legal/privacy/dpia/dpa/schedule-verification>. Swap the named provider by updating the `identity.provider` field in `shyconfig.json` and executing a new DPA with the replacement provider before transitioning production data.